

25NWCV02837 25NWCV02837

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Case Number: 25NWCV02837 Hearing Date: July 10, 2026 Dept: SED

ANTHONY DAVILA

CARRION, ET AL. V. J&P PLUMBING, INC., ET AL.

CASE NO.: 25NWCV02837

HEARING: 07/10/2026 @

9:30 a.m.

#14

TENTATIVE ORDER

Defendant Mark David

Phillips's motion for leave to file cross-complaint is GRANTED.

Defendant Mark David Phillips

to separately file their proposed cross-complaint within 7 days of this ruling.

Moving party to give notice.

Defendant Mark David Phillips

(Phillips) moves for an order granting leave to file a cross-complaint against Defendants J&P Plumbing, Inc. and Yasmin Jovel Martinez Escobar (collectively, Defendants).

Background

On August 7, 2025, Plaintiffs Anthony

Davila Carrion and Yareli Yepe (collectively, Plaintiffs) filed the operative complaint against Phillips, Defendants, and Does 1 through 50, inclusive, asserting two causes of action: (1) Motor Vehicle Negligence and (2) General Negligence.

On August 29, 2025, Phillips filed his answer.

On October 9, 2025, Defendants filed their answer.

On June 9, 2026, Phillips filed the instant motion for leave to file a cross-complaint.

On June 26, 2026, Plaintiffs filed a notice of non-opposition.

On June 29, 2026, Defendants filed an untimely opposition.

On July 2, 2026, Phillips filed his reply.

Timeliness

Defendants' opposition was due on or before June 26, 2026, but was not filed until June 29, 2026. Accordingly, the opposition is untimely. However, Phillips does not object to the untimely filing or otherwise raise the issue in the reply. Under these circumstances, the Court exercises its discretion to consider the opposition in the interests of resolving the matter on the merits. Defendants are admonished to comply with applicable filing deadlines in the future.

Legal Standard

The court may grant leave to file a cross-complaint if the failure to plead a cause of action was the result of oversight, inadvertence, mistake, neglect, or other cause. (Code Civ. Proc., § 426.50.) Where the proposed cross-complaint arises out

of the same transaction as plaintiff's claim, the court must grant leave to file the cross-complaint as long as defendant is acting in good faith. (Ibid.; see *Silver Organizations Ltd. v. Frank* (1990) 217 Cal.App.3d 94, 99 (Silver Organizations) [the Court may not "exercise discretion" in the denial of a motion to file a compulsory cross-complaint].) Judicial policy favors resolution of all disputed matters between the parties in the same lawsuit and discretion will usually be exercised liberally to permit amendment of the pleadings. (See *Nestle v. Santa Monica* (1972) 6 Cal.3d 920, 929.)

"'Bad faith,' is defined as '[t]he opposite of "good faith," generally implying or involving actual or constructive fraud, or a design to mislead or deceive another, or a neglect or refusal to fulfill some duty or some contractual obligation, not prompted by an honest mistake ..., but by some interested or sinister motive[,] ... not simply bad judgment or negligence, but rather ... the conscious doing of a wrong because of dishonest purpose or moral obliquity; ... it contemplates a state of mind affirmatively operating with furtive design or ill will. [Citation.]' [Citations.]" (Silver Organizations, supra, 217 Cal.App.3d at 100.)

A party may obtain leave of court to file a cross-complaint at any time during the course of a lawsuit, and leave may be granted in the interest of justice. (Code Civ. Proc., §§ 426.50, 428.50; see also *Sidney v. Superior Court* (1988) 198 Cal.App.3d 710, 718.) "To the extent practicable, all supporting memorandums and declarations must be attached to the notice of motion." (Cal. Rules of Court Rule 3.1113(j).)

Analysis

Phillips moves for leave to file a Cross-Complaint against Defendants asserting causes of action for (1) Comparative Indemnity, (2) Contribution, and (3) Declaratory Relief.

The proposed cross-complaint is compulsory because it arises out of the same transaction or occurrence as Plaintiffs' complaint. Specifically, the November 19, 2024 motor vehicle accident underlying this action. (Code Civ. Proc., §§ 426.10, 426.30.) As the court explained in *Sattinger v. Newbauer* (1954) 123 Cal.App.2d 365, 369, "[t]he fundamental reason for allowing cross-complaints is to have a complete determination of a controversy

among the parties in the one action, thus avoiding circuity of action."

Phillips contends that, during

Plaintiff Yareli Yepez Maximi's May 1, 2026 deposition, Plaintiff Yepez

testified for the first time that she experienced two separate impacts,

attributing the first collision to Defendant Yasmin Jovel Martinez Escobar. (Sadaka Decl., ¶ 10.) According to Phillips, this testimony

provided a factual basis to allege that Defendant Escobar may bear

responsibility for some or all of Plaintiffs' alleged damages. (Motion p. 3.)

Accordingly, the proposed cross claims arise from the same occurrence as

Plaintiffs' claims and are logically related thereto.

Phillips further represents that

his failure to file the cross-complaint earlier resulted from a lack of

sufficient information regarding the allocation of fault at the time he filed

his Answer on August 29, 2025. (Sadaka

Decl., ¶¶ 8-11.) Following Plaintiff

Yepez's deposition, Phillips states that he promptly prepared the proposed

cross-complaint and the instant motion. (Id.

at ¶ 11.)

In opposition, Defendants argue

that Phillips was never ignorant of the underlying facts because the traffic

collision report and Plaintiffs' Complaint identified the parties involved in

the accident. (Opp., p. 2; Grandy Decl.,

¶¶ 2-3, Exs. A, B.) Defendants therefore

contend that Phillips cannot rely on mistake or inadvertence to justify the

delayed filing. (Opp., p. 3.)

In reply, Phillips argues that

Defendants have failed to make the required strong showing of bad faith or

demonstrate any resulting prejudice. (Reply,

p. 3.) Phillips also notes that neither

the Complaint nor the CHP report distinguished between the separate impacts or

identified which collision allegedly caused Plaintiffs' injuries. (Ibid.)

Rather, Plaintiff Yepez's deposition testimony allegedly provided new

information regarding the sequence and force of the impacts, including

differing body movement and force associated with each collision. (Ibid.) Phillips further argues that permitting the

cross-complaint will not prejudice Defendants because it arises out of the same

accident and will not affect the April 26, 2027 trial date. (Id. at p. 4.)

The Court agrees. Nothing before the Court demonstrates that Phillips acted in bad faith, with fraud, deceit, or an improper motive in seeking leave to file the proposed compulsory cross-complaint. (See *Silver Organizations*, supra, 217 Cal.App.3d at 99-100.) Although Defendants dispute whether Plaintiff Yepez's deposition revealed any new information, the Court is not persuaded that Phillips' explanation reflects bad faith. Rather, it appears that Phillips did not believe there was a sufficient factual basis to assert comparative fault claims until after Plaintiff Yepez's deposition. Moreover, Defendants have not demonstrated any prejudice resulting from the requested amendment, particularly where trial is not scheduled until April 26, 2027.

Accordingly, Phillips' motion for leave to file the proposed Cross-Complaint is GRANTED.

Conclusion

Based on the foregoing, Defendant Mark David Phillips's motion for leave to file cross-complaint is GRANTED.

Defendant Mark David Phillips to separately file their proposed cross-complaint within 7 days of this ruling.